

Art. 123(2) EPC 1973 if it contained a **feature whose definition was amended in the description** in a non-allowable way. The specific definition of a feature which according to the description was an overriding requirement of the claimed invention was applied by a skilled reader to interpret that feature whenever it was mentioned in the patent. Since in this case the definition had no basis in the application as filed, claim 1 did not meet the requirements of Art. 123(2) EPC 1973. See also T 471/20, in which the facts of the case were found to be different from T 500/01.

In T 1239/03 it was not in dispute between the parties that no part of the patent contained a definition of the ethylene content of the elastomeric copolymer in terms of weight percent. Prior to the amendment, preference was given to the interpretation "mol percent", which, with the deletion of example 3, had shifted towards "weight percent". In such a case, where it was certain that a shift in the interpretation of the claims had occurred, but uncertain if this would lead to an addition of subject-matter, the board took the view that it should be incumbent upon the patent proprietor or applicant as the author of such amendment(s) to demonstrate that the requirements of Art. 123(2) EPC 1973 were complied with in making them. In the case at issue, the patent proprietor was unable to do so. See also T 471/20, in which the facts of the case were found to be different from T 500/01.

In T 1227/10 the claim as granted was similar to the claim as originally filed. However, other than in the patent as granted, the original application also contained a figure 1 labelled as prior art and a corresponding passage of the description. The board found that the original application did not include the possibility of using a filter as gas solid separator for a certain purpose, whilst the patent as granted encompassed such a possibility. Hence, the deletion of original figure 1 and of the related passage of the description had modified the application in such a way that the granted claim 1 included subject-matter which was excluded from the originally filed invention.

1.14.5 Shift in the information provided by the examples after amendment of claims

T 97/05 concerned an amendment of a claim resulting in a shift in the information provided by examples. During the opposition proceedings, claim 1 was modified by replacing the term "chemically" with "covalently" in order to specify the nature of the bond between the anionic groups and the core. The information provided by the description was that the bonding between the core and the anionic group was "chemical" and that one type or species of "chemical" bonding was "covalent". In the board's view a consequence of the amendment of the claims by replacement of the generic term "chemically bonded" by the specific term "covalently bonded" was that the examples of the patent acquired by association information, i.e. that the anionic groups were covalently bonded to the core, which was not – even implicitly – contained by the same examples in the application as filed. Thus there was a shift in the information provided by the examples in the patent as amended according to the main request compared to that provided by the same examples in the application as filed, even though the examples themselves had not been modified (by analogy with T 1239/03). Therefore the main request did not meet the requirements of Art. 123(2) EPC 1973.

1.14.6 Reformulation of the technical problem

Expanding on T 13/84 (OJ 1986, 253), it was stated in T 547/90 and T 530/90 that reformulating the technical problem was not in breach of Art. 123(2) EPC 1973 provided the problem as clarified and the solution proposed could have been deduced from the application as a whole in the form originally filed (see T 871/08 of 8 December 2011, T 2076/09). In T 969/19 the board made it clear that Art. 123(2) EPC was not concerned with the issue of whether or not an objectively reformulated technical problem could be used in the course of the problem and solution approach. It could only come into play if an amended technical problem was incorporated into the description itself (see T 284/98 and T 276/06).

On the reformulation of the technical problem, see also chapters I.D.4.4. – 4.5.

1.14.7 Replacement of complete description and drawings

In G 2/95 (OJ 1996, 555) the Enlarged Board observed that a correction affecting the content of the application could only be effected within the limits of Art. 123(2) EPC (as defined in G 3/89, OJ 1993, 117). The complete documents forming a European patent application, that is the description, claims and drawings, could not be replaced by way of a correction under R. 88 EPC 1973 (R. 139 EPC) by other documents which the applicants had intended to file with their request for grant.

In J 16/13 the board held that the ratio decidendi of G 2/95 (and also of J 5/06) was also applicable to all cases where at least a complete description was sought to be exchanged.

1.14.8 Deletion from the description of expressions making features optional

In T 2466/13 the appellant (opponent) had raised an objection under Art. 123(2) EPC, contending that the way the patent description had been adapted, in particular the deletion of expressions showing that features included in the main claim were optional, was liable to give the proprietor an undue advantage in any infringement action, especially one alleging infringement by equivalent means. The board disagreed, observing that, since the original application had been published, the defendant in any such action would still be able to cite the amendments made during the EPO proceedings by producing it alongside the patent as granted and/or amended.

1.15. "Comprises", "consists of", "consists essentially of", "contains"

In T 759/10 it had to be examined whether there was a clear and unambiguous implicit disclosure in the application as filed providing a basis for the amendment from "comprises" to "consists essentially of". The appellant argued that the term **"comprising"** encompassed three alternatives, namely (i) "comprising", (ii) "consisting of" and (iii) "consisting essentially of", and that each of these alternatives would immediately come to the skilled person's mind when reading the term "comprising". The term "comprises" was therefore in itself already a sufficient basis for the term "consists essentially of". The board could not accept this argument as each term had a different technical meaning, namely (i)

that any further component can be present ("comprises"), (ii) no further component can be present ("consists of") and (iii) specific further components can be present, namely those not materially affecting the essential characteristics of the texturizing agent ("consists essentially of"). Therefore the skilled person was not at liberty to choose whichever of the three terms he wished when reading the term "comprises". The board further refused the request for referral of questions to the Enlarged Board of Appeal. Although the board agreed with the appellant that the two boards in decisions T 472/88 and T 975/94 appeared to have considered the term "comprises" in itself to be a sufficient basis for the term "consists essentially of", the jurisprudence of the boards had further developed since these two decisions, in particular by way of the two later decisions of the Enlarged Board of Appeal in G 2/98 (OJ 2001, 413) and G 1/03 (OJ 2004, 413). In line with these decisions of the Enlarged Board of Appeal, more recent decisions of the boards of appeal, e.g. T 868/04, T 725/08 and T 903/09, had applied the criterion of clear and unambiguous disclosure to decide on the allowability of the amendment of the term "comprises" to "consists essentially of". These decisions had considered that this criterion is not automatically fulfilled by the term "comprising" alone. In the case at issue in T 759/10, the replacement of the word "comprising" by "consisting essentially of" was found to contravene Art. 123(2) EPC, but the replacement of the word "comprising" by "consisting of" was allowed.

According to T 1271/13 it is today settled that the term "comprising" is not generally accepted as direct and unambiguous basis for an amendment to "consisting essentially of".

In T 56/08 the board rejected the respondent's argument that the verb "**to contain**" had a more restrictive meaning than the verb "to comprise"; the board pointed out that the general meaning of the verb "to contain" was "to have in it", "to hold", "to include", "to encompass" or "to comprise".

In T 1170/07 "consisting essentially of" was substituted for "comprising". Before evaluating whether the original disclosure in its entirety specifically disclosed the claimed unit dosage form consisting essentially of tetrahydrolipstatin, it had to be established what the term "consisting essentially of", which could not be found in the original application, meant in the context. The board recalled on this occasion that claims should be read in a technically reasonable way. In the case at issue, the expression "consisting essentially of" excluded the presence of further active agents useful in the treatment of the specific disease concerned but allowed the presence of additional compounds forming the carrier for the active agent. The board concluded in this case that the substitution of "consisting essentially of" for "comprising" was allowable under Art. 123(2) EPC.

In T 108/14 the board distinguished the case at issue from the one in T 1170/07 because it was not directly and unambiguously derivable from the application as filed, which "active agents" were useful. Furthermore, the board referred to a line of jurisprudence (e.g. T 1095/09, T 759/91, T 522/91, T 472/88) according to which the expression "consisting essentially of" was found to be clear and to allow the presence of other components in addition to the components mandatory in the claimed composition, provided that the essential characteristics of the claimed composition were not materially affected by their

presence. However, in the case at issue, the application as filed was silent as regards the components which, in addition to those defined in claim 1 at issue, could be allowed in the claimed refractory without affecting its essential characteristics.

In T 107/14 the appellant (opponent) argued that claim 1 extended beyond the content of the application as filed because it was directed to an alloy **"consisting of"** the given elements, whereas claim 1 as originally filed related to an alloy "comprising" the given elements. The board held that, since the originally filed claim 1 already disclosed that the rest of the composition consisted of Ni, not allowing for the presence of further elements, and thus was already directed to closed compositions, the composition stipulated by claim 1, "consisting of" the given elements, was already disclosed in the application as originally filed.

In T 1634/13 the claim as granted combined the subject matter of various claims as filed, with the terms "comprising" and "containing" being replaced by the terms "consisting in" or "consisting of". The board held that specific examples in the application taught that the terms "comprising"/"containing" included the term "consisting" as a particular, originally disclosed meaning. While it was true that the change in wording restricted the subject-matter with respect to the original wording, such a restriction was not objectionable under Art. 123(2) EPC. In particular, there had been **no singling out** within the meaning of G 2/10.

In T 1173/17 "comprising" was replaced by "consisting of" in claim 1 of auxiliary request 2. The board distinguished its case from T 107/14 and T 725/08 and considered that the subject-matter of claim 1 was not directly and unambiguously derivable from the original application.

On issues of clarity raised by the terms "comprising (substantially)", "consisting (essentially) of", "containing", see chapter II.A.6.2.

1.16. Different sets of claims for different contracting states

In T 658/03 the board stated that any change of attribution of claimed subject-matter in an application or patent having different (sets of) claims for different contracting states, to a contracting state under which that subject-matter was not previously included, amounted to an amendment within the meaning of Art. 123 EPC 1973. Such an amendment was subject, in principle, to full examination as to its conformity with the requirements of the Convention

2. Article 123(3) EPC – extension of the protection conferred

According to Art. 123(3) EPC the European patent may not be amended in such a way as to extend the protection it confers. This refers to the patent as a whole. The wording of Art. 123(3) EPC 1973 had referred only to the claims of the patent; however, already under the EPC 1973, the boards had held that amendments to the description and the drawings could also extend the protection conferred within the meaning of Art. 123(3) EPC 1973 (see T 1149/97, OJ 2000, 259).

Art. 123(2) EPC and Art. 123(3) EPC are mutually independent of each other (G 1/93, OJ 1994, 541); the same is true for Art. 76(1) EPC and Art. 123(3) EPC (T 1736/09).

2.1. Purpose of Article 123(3) EPC

Art. 123(3) EPC is directly aimed at protecting the interests of third parties by prohibiting any broadening of the claims of a granted patent, even if there should be a basis for such broadening in the application as filed (G 1/93, OJ 1994, 541). In accordance with the general intention of Art. 123(3) EPC, there should be legal certainty for the activities of third parties trusting that the protection conferred by a patent can only be restricted, but not extended (T 1149/97).

The object of Art. 123(3) EPC is to prevent any procedural situation where an act which does not infringe the patent as granted becomes an infringing act as a result of an amendment after grant (see T 1149/97, T 1898/07 referring to T 59/87, OJ 1988, 347 and T 604/01).

2.2. Totality of claims

In accordance with the established case law of the boards of appeal, the legal notion "protection conferred" in Art. 123(3) EPC refers to the **totality** of protection established by the claims as granted and not necessarily to the scope of protection within the wording of each single claim as granted (T 579/01, T 1456/06, T 1544/07, see also T 49/89, T 402/89). According to G 2/88 (OJ 1990, 93), it is the totality of the claims before amendment in comparison with the totality of the claims after the proposed amendment that has to be considered.

Under Art. 123(3) EPC, the patentee is generally allowed to redraft, amend or delete the features of some or all claims and is not bound to specific terms used in the claims as granted as long as the new wording of the claims does not extend the scope of protection conferred as a whole by the patent as granted. Thus, in order to assess any amendment under Art. 123(3) EPC after grant, it is necessary to decide whether or not the totality of the claims before amendment in comparison with the totality of the claims after amendment extends the protection conferred (see e.g. T 579/01, T 1898/07, T 1830/14).

2.3. Extent of protection

2.3.1 Article 123(3) EPC and Article 69 EPC

a) Principles

Art. 69 EPC and its Protocol are to be applied in proceedings before the EPO whenever it is necessary to determine the protection conferred. In this context, the national laws of the contracting states relating to infringement should not be considered. Rather the protection conferred by a patent is determined by the terms of the claims, and in particular by the categories of the claims and their technical features, in accordance with Art. 69(1) EPC.